October 25, 2022

Dear Mr. Hemp:

Re: Grievance Report – 102122-125218 Greve, Tonie

I received your grievance dated October 21, 2022, this grievance was sent to my supervisor instead of to me and I apologize on the apparent delay however, I just received this today. This grievance claims violations of the Collective Bargaining Agreement between Indian Health Services and LiUNA local 5251 hereinafter referred to as CBA. This grievance also claims violations of 5 USC § 5105.

I have reviewed the grievant's official position description PX3439 PCMC and outlined complaints. The compared duties assigned and this position description as well as the scope of practice for registered nurses and care coordinators along with the Arizona Nurse Practice Act Arizona Revised Statutes ("A.R.S.") §§ 32-1601 through -1669 and Arizona Administrative Code ("A.A.C.") R4-19-101 through -815. Additionally, a review of 5 U.S.C. § 2301 - U.S. Code Title 5. Government Organization and Employees § 2301 (8) 2020; 5 CFR § 9701.511 - Management rights. (a) 2 (A) (B); and 5 USC Ch. 71: LABOR-MANAGEMENT RELATIONS was conducted as they pertain to these complaints.

Through this review, it was determined that the rotation of assignments to the nurse triage room and to assist with vaccinations for one day does not constitute an de minimis effect of the employee's condition of employment. As you are aware pursuant to 5 U.S.C. 7106, the relocation of services is a management right and therefore, not substantively negotiable. The agency has an obligation to negotiate over the procedures and appropriate arrangements associated with the change only if the change has more than a de minimis effect on the employee's conditions of employment. The activities referenced above do not have more than a de minimis effect on conditions of employment. Therefore, the Agency has no obligation to negotiate the procedures and arrangements for implementing the change. Management can only accomplish its mission through the effective use of people as done in this situation. Additionally, employee claims that these duties as assigned were more than other duties as assigned. The term "other duties as assigned" are any duties not listed in the Position Description that are accomplished less than 5% of the time and are not regular and recurring. These do not meet critical element or major duty criteria. Consistent with management's right to assign work management will make reasonable efforts to assign work in a way that is reflective of the employee's position description and licensure.. Work assignments were not in violation of prohibited personnel practices nor any relevant law, rule, regulation or this agreement.

In response to claim 1 violation of CBA article 1 fair and equitable treatment. Public interest required the full utilization of the employee's skills and abilities and were assigned equitably to all clinic RN's without regard to age, race, sex, religion, color or

national origin, handicapping condition, marital status, political affiliation or other conditions covered by law, government-wide regulation and executive order. Therefore, in accordance these findings this claim is unsubstantiated.

In response to claim 2 violation of CBA, article 17 sections 1 and 2. As explained the employees position description remains current though it is not inclusive of all duties that may be assigned and these assignments were one time, are not, and have not been reoccurring therefore, there is no reasonable expectation to think that the position description should be updated. This complaint alleges a violation of section 2 however, the employees duties and responsibilities have not been changed significantly and there is no need to update the position description. In accordance with the CBA article 17 section 3(a) the employee was responsible if believed there were significant changes to her regularly assigned responsibilities/duties to discuss the issue with her supervisor and the employee failed to attempt and work collaboratively to remedy any questions or discrepancies. In accordance with these findings, this claim is unsubstantiated.

In response to claim 3 violation of 5 U.S.C. 5105 – STANDARDS FOR CLASSIFICATION OF POSITIONS however, the current position description is properly classed and defines the duties, responsibilities and qualification requirements for the employees current position. In accordance with these findings, this claim is unsubstantiated.

In response to claim 4 violation of article 18 placement and promotion the duties were both less than one day each and were not a detail to a higher-graded position it was a work assignment for one shift and/or a partial shift within the department the employee is assigned the Primary Care Medical Clinic (PCMC). In accordance with these findings, this claim is unsubstantiated.

The step 2 official for this grievance is Jason White.

Please do not hesitate to contact me at the number below with further questions or concerns.

Regards,

Digitally signed by Kevin D. Turnage -S
DN: c=US, o=U.S. Government, ou=HHS, ou=IHS, ou=People, 0.9.2342.19200300.100.1.1=2002354158, cn=Kevin D. Turnage -S
Date: 2022.10.27 09:26:29 -07'00'

Hon. Kevin D. Turnage MSN-Ed RN, AMB-BC, NHDP-BC, NPD-BC
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